

K.S. Vinay Kumar vs Smt. C.H. Meghana on 3 July, 2023

Author: Alok Aradhe

Bench: Alok Aradhe

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NC: 2023:KHC:22805-DB
MFA No.8045 of 2017

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
DATED THIS THE 3RD DAY OF JULY, 2023
PRESENT
THE HON'BLE MR. JUSTICE ALOK ARADHE
AND
THE HON'BLE MR. JUSTICE ANANT RAMANATH HEGDE
MISCELLANEOUS FIRST APPEAL NO.8045 OF 2017 (FC)
BETWEEN:

Digitally
signed by
RUPA V
Location:
High Court
of Karnataka

1. K.S. VINAY KUMAR
S/O K.V.S. ODEYAR
AGED ABOUT 33 YEARS
RESIDING AT VEERABHADRASWAMY NILAYA
NEAR BHARATH PRIMARY SCHOOL
6TH CROSS, 2ND STAGE
GOKULA EXTENSION
SHISHIRA ROAD, TUMKUR-572101.

...APPELLANT

(BY SRI. G. RAVISHANKAR, ADV., FOR
SRI. GANGADHARAPPA A.V. ADV.,)

AND:

1. SMT. C.H. MEGHANA
W/O K.S. VINAYKUMAR
D/O LATE HOSALAPPA
AGED ABOUT 30 YEARS
RESIDING AT MALLIKARJUNASWAMY NILAYA
1ST FLOOR, 6TH LINK ROAD
2ND MAIN ROAD
VIJAYANAGARA, TUMKUR-572101.

...RESPONDENT

(BY SRI. P.V. MANJUNATHA, ADV.,)

THIS MFA IS FILED U/S 19(1) OF THE FAMILY COURTS
ACT 1984, AGAINST THE JUDGMENT AND DECREE DATED
21.09.2017 PASSED IN M.C.NO.77/2016 ON THE FILE OF THE

THE PETITION UNDER SECTION 13(1)(i-b) OF THE HINDU
MARRIAGE ACT.

THIS APPEAL COMING ON FOR FINAL HEARING, THIS
DAY, ALOK ARADHE J., DELIVERED THE FOLLOWING:

JUDGMENT

In this appeal under Section 19(1) of the Family Courts Act, 1984, the dispute only pertains to quantum of permanent alimony.

2. Facts giving rise to filing of this appeal briefly stated are that the marriage between the parties was solemnized on 04.05.2012. Admittedly, out of the wedlock, a son was born to the parties. The appellant / husband filed a petition seeking dissolution of marriage under Section 13(1)(ia) and (ib) of the Hindu Marriage Act, 1955 (hereinafter referred to as 'the Act' for short) on the ground of cruelty as well as desertion.

3. The family court vide judgment dated 21.09.2017 has dissolved the marriage between the parties on the ground of desertion. In addition, the family court has awarded a sum of Rs.5 Lakhs as NC: 2023:KHC:22805-DB permanent alimony. Being aggrieved the appellant / husband has filed this appeal.

4. Learned counsel for the appellant submitted that the appellant is a B.com graduate and is employed in a private company as office assistant. It is further submitted that his monthly salary is Rs.15,000/-. It is also pointed out that on 17.11.2017, the appellant has re-married and has a son from the second marriage. It is also pointed out that the appellant / husband is paying a sum of Rs.4,000/- towards maintenance of his son in compliance of the order passed in a proceeding under Section 125 of Code of Criminal Procedure. It is also pointed out that a sum of Rs.2.5 Lakhs has already been paid by the appellant, which has been withdrawn by the respondent. It is therefore, contended that the order granting permanent alimony to be modified suitably.

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5. On the other hand, Learned counsel for the respondent has supported the judgment and decree passed by the family court and has submitted that the amount of permanent alimony awarded by the family court is reasonable and is just and proper.

6. We have considered the submissions made on both sides and have perused the record. Admittedly, the appellant is employed as Office Assistant in a private company and is drawing

monthly salary of Rs.15,000/-. It is not in dispute that an order in proceeding under Section 125 of Code of Criminal Procedure has been passed by which the appellant has been directed to pay a sum of Rs.4,000/- per month. Taking into account the status of the parties as well as the subsequent event viz., the subsequent marriage of the appellant as well as the fact that the husband is employed as a teacher in a government school, the amount of permanent alimony granted by the family court is reduced to Rs.4 Lakhs.

NC: 2023:KHC:22805-DB The balance amount of Rs.1.5 Lakhs shall be deposited by the appellant before the Family court within a period of three months from today, failing which the same shall carry interest at the rate of 6% per annum. To the aforesaid extent, the judgment and decree dated 21.09.2017 passed in M.C.No.77/2016 is modified.

In the result, the appeal is disposed of.

Sd/-

JUDGE Sd/-

JUDGE SS